iii. Constitution is custodian of liberty and it confines the authority of the state and protects the fundamental right of the people.

How liberty is safeguarded?

i. Democracy

Liberty is safer in democracy than in any other form of government. Democratic government is the government of the people. Opposite parties are given due respects in democracy.

ii. Constitution

Authority of the state dwells in the constitution of the respective nation.

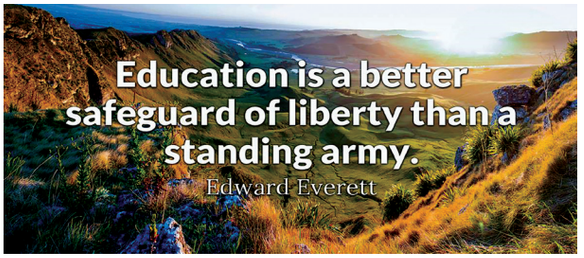
The Preamble of Constitution reads like a poem on democracy. It contains the philosophy on which the entire Constitution has been built. It provides a standard to examine and evaluate any law and action of government, to find out whether it is good or bad. It is the soul of the Indian Constitution.

iii. Fundamental Rights

Fundamental rights confines the authority of the state. Fundamental rights assure us that the state cannot interfere in the matters of personal life .

The Fundamental Rights

- i) Right to Equality (Article 14-18)
- ii) Right to Freedom (Article 19-22)
- iii) Right against exploitation (Article 23-24)
- iv) Right to freedom of Religion (Article 25-28)
- v) Cultural and Educationl Rights (Article 29-30)
- vi) Rights to Constitutional Remedies (Article 32-35)



iv. Decentralization of powers

Decentralization of power is required for the safeguard of liberty. Power should be divided into central, provincial and local government and such decentralization leads to efficient administration.

v. Independent Judiciary

Safeguard of Liberty depends upon the independence of judiciary. It should be free from the control of the executive. In the communist countries or in the countries which have dictatorship, fundamental rights are given to the people but judiciary is not free from the influence of the executive. In such countries, the safeguard and security of fundamental rights, liberty and constitution is not possible.

INDEPENDENT JUDICIARY

The constitution of India makes provisions for the independence of judiciary because only independent judiciary can safeguard the rights and liberties of the people, can protect the supremacy of the constitution

i. An impartial method has been adopted for the appointment of the judges.

ii. High qualifications have been fixed for the judges.

iii. The judges of the Supreme Court stay in office till 65 years of age and of High courts till 62 years of age.

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